

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE

FOR ENGROSSED

HOUSE BILL NO. 3403

By: Patzkowsky and Alonso-
Sandoval of the House

and

Stewart of the Senate

COMMITTEE SUBSTITUTE

An Act relating to environment and natural resources; creating the Oklahoma Biosolids Land Application Research Pilot Program Act; providing short title; requiring the Department of Environmental Quality to administer the Oklahoma Biosolids Land Application Research Pilot Program in cooperation with Oklahoma State University; providing for expiration of the pilot program; listing requirements for the pilot program; requiring electronic submission of certain annual report; listing requirements for annual report; authorizing partnerships with private landowners; limiting liability; making certain exemption; requiring certain documentation be kept; authorizing continued application upon certain finding; requiring utilization of certain technology; prohibiting land application of certain materials upon certain date; prohibiting issuance of certain permits; requiring cessation of certain actions by certain dates; requiring plan submission by certain permittees by certain date; directing rule promulgation; defining term; authorizing funding; requiring deposit of funds in certain revolving fund; creating the Oklahoma Biosolids Land Application Research Pilot Program Act Revolving Fund; describing fund; providing for content of fund; providing for deposits and expenditures; providing for codification; and providing an effective date.

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2 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

3 SECTION 1. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 2-10-1120 of Title 27A, unless
5 there is created a duplication in numbering, reads as follows:

6 This act shall be known and may be cited as the "Oklahoma
7 Biosolids Land Application Research Pilot Program Act".

8 SECTION 2. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 2-10-1121 of Title 27A, unless
10 there is created a duplication in numbering, reads as follows:

11 A. There is hereby created at Oklahoma State University (OSU)
12 the Oklahoma Biosolids Land Application Research Pilot Program. The
13 pilot program shall be administered by the Department of
14 Environmental Quality (DEQ) in cooperation with the OSU Division of
15 Agricultural Sciences and Natural Resources and in coordination with
16 the OSU College of Engineering, Architecture and Technology, the OSU
17 Department of Environmental Science, and the OSU Cooperative
18 Extension Service. The pilot program shall operate for an initial
19 three-year period.

20 B. The pilot program shall:

21 1. Identify and approve study plots on agricultural lands,
22 including, but not limited to, OSU-owned research farms and, as
23 appropriate, cooperating private farms and farms that have a history
24 of using biosolids;

1 2. Develop biosolids application protocols, including:

2 a. nutrient content evaluation,

3 b. pathogen and contaminant screening, including
4 perfluoroalkyl and polyfluoroalkyl substances (PFAS),
5 heavy metals, and pharmaceuticals,

6 c. application rates, and

7 d. soil amendment practices;

8 3. Conduct agronomic research, including crop yield impacts,
9 soil health changes, and nutrient cycling;

10 4. Conduct environmental impact studies, including:

11 a. surface and groundwater monitoring,

12 b. soil residual testing, and

13 c. air quality, odor, and vector considerations;

14 5. Assess regulatory models, including best management
15 practices, permitting options, and compliance structures suitable
16 for this state;

17 6. Coordinate with the DEQ and may utilize biosolids supplied
18 by municipal wastewater treatment facilities of this state that meet
19 DEQ and United States Environmental Protection Agency (EPA)
20 standards; and

21 7. Provide outreach and education to farmers, ranchers,
22 conservation districts, and municipalities in this state through OSU
23 Extension programs.

1 C. An electronic report shall be submitted annually to the
2 Governor, the President Pro Tempore of the Senate, the Speaker of
3 the House of Representatives, and the DEQ regarding findings, data,
4 and recommendations. Annual reports shall be submitted no later
5 than December 1 and include:

- 6 1. Agronomic outcomes;
- 7 2. Environmental monitoring results;
- 8 3. Risk assessments;
- 9 4. Recommendations for statewide standards or rules; and
- 10 5. Cost-benefit analysis for farmers and municipalities.

11 D. OSU may partner with private agricultural landowners who
12 volunteer to participate in research trials. OSU shall secure
13 written consent, ensure DEQ compliance, and provide guidelines for
14 application, monitoring, and sampling. No landowner shall be held
15 liable for environmental impacts resulting solely from adherence to
16 OSU protocols developed under the pilot program.

17 E. Biosolids applied under the pilot program shall be exempt
18 from state permitting otherwise required under environmental or land
19 application rules, only to the extent necessary to conduct
20 controlled research, and only when research protocols meet or exceed
21 DEQ and EPA requirements. OSU shall coordinate with the DEQ to
22 ensure proper recordkeeping and transport documentation.

23 F. The pilot program may be funded by legislative
24 appropriations, federal research grants, municipal contributions,

1 private or industry research partnerships, or in-kind contributions
2 of biosolids or laboratory services. Funds for administering the
3 pilot program shall be deposited into the Oklahoma Biosolids Land
4 Application Research Pilot Program Act Revolving Fund created in
5 Section 3 of this act.

6 G. 1. Upon completion of the three-year pilot program, if the
7 findings, data, and recommendations in the reports required pursuant
8 to subsection C of this section indicate that land application of
9 biosolids is considered to be safe and cost-effective, the DEQ shall
10 continue to issue new permits and renewals for such application of
11 biosolids in accordance with the report recommendations.

12 2. Municipalities shall require the use of microbial
13 biotechnology approved by the DEQ to reduce the volume of biosolids
14 at a wastewater treatment plant. Additionally, such municipalities
15 shall adopt technology approved by the DEQ to reduce biosolid odor
16 and dry solid matter at a wastewater treatment plant.

17 H. 1. Upon completion of the three-year pilot program, if the
18 findings, data, and recommendations in the reports required pursuant
19 to subsection C of this section indicate that land application of
20 biosolids would be a detriment to the health and safety of this
21 state, such application shall be prohibited on and after December 1,
22 2029, and the DEQ shall not issue any new permit for the land
23 application of biosolids. Renewal of permits for land application
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1 shall be left to the discretion of the DEQ for the purpose of aiding
2 municipalities with the reduction of land application of biosolids.

3 2. Not later than December 1, 2027, all persons or entities
4 permitted to land apply biosolids shall reduce the amount of such
5 material land applied by at least twenty-five percent (25%).

6 3. Not later than December 1, 2028, all persons or entities
7 permitted to land apply biosolids shall reduce the amount of such
8 material land applied by at least fifty percent (50%).

9 4. Not later than December 1, 2029, any person or entity
10 permitted to land apply biosolids shall submit a plan for full
11 cessation of such actions to the DEQ. The plan shall be compiled
12 and submitted in the form and manner prescribed by the DEQ.

13 I. The DEQ shall promulgate rules to implement the provisions
14 subsections G and H of this section.

15 J. For the purposes of this section, "biosolids" means treated
16 sewage sludge derived from municipal or domestic wastewater
17 treatment plants.

18 SECTION 3. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 2-10-1122 of Title 27A, unless
20 there is created a duplication in numbering, reads as follows:

21 There is hereby created in the State Treasury a revolving fund
22 for the Department of Environmental Quality to be designated the
23 "Oklahoma Biosolids Land Application Research Pilot Program Act
24 Revolving Fund". The fund shall be a continuing fund, not subject

1 to fiscal year limitations, and shall consist of all monies received
2 by the Department from appropriations, apportionments, donations,
3 and federal grants received for the purpose of conducting the
4 provisions of the Oklahoma Biosolids Land Application Research Pilot
5 Program created pursuant to Section 2 of this act. All monies
6 accruing to the credit of the fund are hereby appropriated and may
7 be budgeted and expended by the Department for the purpose provided
8 for in this section. Expenditures from the fund shall be made upon
9 warrants issued by the State Treasurer against claims filed as
10 prescribed by law with the Director of the Office of Management and
11 Enterprise Services for approval and payment.

12 SECTION 4. This act shall become effective November 1, 2026.

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